

Sample Rubric—Practice Problem Set #1

Question A

_____ Issue statement (1)

_____ Legal rule (4.5)

- Due Process in state court (1)

- opportunity to be heard in a meaningful manner/at a meaningful time (1)

- three-prong balancing test (1.5, i.e., .5 for each prong)

- usually get pre-deprivation hearing, but not if exigent circumstances (1)

_____ Dot's interest (3)

- It's a significant amount of money (2)

- comparing with other cases—e.g., this is much less interest than in a house as in *Doehr*, but still quite a lot (1)

_____ Risk of error/value of more process (9)

- identifying exactly how the process here works, with the affidavit (1)

- focusing on the process, not on whether we know that Dot is in fact fleeing (1)

- considering risk of this specific affidavit process—e.g., it's a low bar for plaintiff to meet, with “believe” and “might attempt” (2)

- risk of court simply accepting plaintiff's statement “as true” (1)

- considering potential value of other procedural mechanisms—e.g., using a higher standard for the affidavit, or requiring some evidence presented by plaintiff, court deciding for itself rather than automatically accepting plaintiff's “belief,” or plaintiff posting a bond, or having a hearing *sooner* (4)

_____ Pat's interest, and burden on government (5)

- some burden on plaintiff, as more process would increase chances defendant can hide assets (2)

- on the other hand, could still protect plaintiff's interest by only raising the bar on the affidavit a bit (1)

- some burden on government, insofar as the government has an interest in enforcing its laws, and more process could increase chances defendant can hide assets and foil state law enforcement (1)

- on the other hand, minimal material burden on the government to hold the

_____ hearing earlier rather than later (1)
_____ Overall balancing (1.5, i.e., .5 for weighing each prong)
_____ Clearly stated Conclusion (1)
_____ / **25 total**

Question B

_____ Issue statement (1)
_____ Legal rule (4)
 -“plausibility” standard (1)
 -set aside conclusory allegations (1)
 -assume factual allegations are true (1)
 -ask if it’s plausible claim under the relevant substantive law (1)
_____ Paragraph 1 of Complaint (3)
 -likely conclusory assertion that there was a contract (2)
 -but 2013 is at least a factual allegation (1)
_____ Paragraph 2 of Complaint (4)
 -conclusory assertion that contract terms were violated (2)
 -though some facts about refusing to work together (2)
_____ Paragraph 3 of Complaint—no factual allegations of harm (2)
_____ Conclusion (1)
_____ / **15 total**

Question C

_____ Paragraph 1 facts showing their agreement (2.5)
_____ Paragraph 2 facts showing conduct that violates the terms (2.5)
_____ / **5 total**

Total: _____ / **45**